

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 31, 2026 TIME: 8:30 A.M.

If there is no opposition to the tentative, the court will sign the proposed order submitted by counsel. Counsel is directed to serve a copy of the signed orders, with the next hearing date, on defendants and cross-complainants Kevin O'Donoghue and Carrie O'Donoghue.

No. 25CV02936

TD BANK v. CONTRERAS

MOTION TO BE RELIEVED AS COUNSEL

The unopposed motion to be relieved is granted. If there is no opposition to the tentative, the court will sign the proposed order submitted by counsel. Counsel is directed to serve a copy of the signed order, with the next hearing date, on Mary Contreras.

No. 22CV02512

MAYNARD et al. v. ARREDONDO et al.

DEFENDANTS' MOTION TO SET ASIDE DISMISSAL; CCP §473(b)

The unopposed motion is granted pursuant to the mandatory relief provision of Code of Civil Procedure section 473, subdivision b. The April 1, 2026, dismissal without prejudice order is vacated. The court will set a further case management conference to oversee the parties' memorialization of their settlement and entry of dismissal.

The moving party bears the burden of proving they are entitled to relief under section 473, subdivision b. The court is empowered to relieve a party "upon any terms as may be just ...from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (§ 473, subd. (b).) Any party to the action or his or her legal representative may seek relief under section 473, subdivision b and relief is mandatory when it is based upon an attorney affidavit of fault.

Defendants' counsel declares that she failed to address the April 1, 2026, OSC sooner and was prevented from appearing at the April 1, 2026, hearing due to technical difficulties (the court failed to pick up (apparent Zoom mishap)). The parties still need court supervision of their settlement and lot line adjustment since communication between them has ceased and the settlement details have yet to be memorialized. (Dunn Declaration.)

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 31, 2026 TIME: 8:30 A.M.

No. 22CV00539

BRIGHT V. CALIF. FAIR PLAN ASSOC., et al.

PLAINTIFF'S MOTION TO COMPEL DEPOSITION OF VICTORIA ROACH

**DEFENDANT CALIF. FAIR PLAN ASSOC.'S MOTION FOR PROTECTIVE
ORDER REGARDING NOTICE OF DEPOSITION FOR VICTORIA ROACH
AND ADDITIONAL PMQ, AND FOR MONETARY SANCTIONS**

Plaintiffs' motion is denied. Plaintiffs failed to support their motion with evidence that Ms. Roach's deposition is necessary and that they have exhausted less intrusive means of discovery. For example, they have not served written discovery to determine the state of Ms. Roach's direct knowledge or involvement in plaintiffs' claim.

Defendant's motion is granted. As explained below, Ms. Roach is not compelled to testify at deposition since plaintiffs failed to meet their burden to require an apex deposition. Plaintiffs' additional PMQ deposition notice appears moot; in any event, no further PMQ deposition is warranted based on the court's order of July 15, 2026. The further PMQ notice was served before that order limiting further deposition questions of defendant's Vice President of Claims to two topics as they applied to plaintiffs' claims only (the California Department of Insurance Market Conduct Examination/Report and claims administration and staffing of the plaintiffs' claim). The court declines to impose sanctions against plaintiffs at this time.

I. BACKGROUND

Plaintiffs Mark and Tingting Bright allege causes of action for breach of contract and breach of the implied covenant of good faith and fair dealing against their homeowner's insurance company, California FAIR Plan.

Plaintiffs reside at 11025 Alba Road, Ben Lomond. (Complaint ¶3.) Plaintiffs were forced to evacuate during the 2020 wildfire event and returned to their home that was significantly damaged by smoke, soot, ash and char but not a total loss. Plaintiffs purchased an insurance endorsement through Defendant; their homeowners' policy is with Farmers Insurance and specifically excludes coverage for any peril which is covered by the CFPA endorsement including smoke damage. (Complaint ¶¶ 13-15.) Plaintiffs contend that the CFPA policy does not conform to state law that requires coverage for all loss by fire in several ways: requires loss be evidenced by permanent physical changes to covered property and limits coverage for smoke damage to that which is visible to the naked eye or odor from smoke or ash detected by the unaided nose of an average person, not by subjective senses or laboratory testing. (Complaint ¶¶ 16-31.) Plaintiffs timely and properly submitted their fire loss claim to CFPA, which included